



SPONSOR: Sen. Huxtable & Rep. Griffith
Sen. Wilson; Reps. Burns, Snyder-Hall

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 85

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO VULNERABLE ADULTS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members elected to each house thereof concurring therein):

Section 1. Amend Chapter 5, Title 11 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1105A. Endangering the welfare of a vulnerable adult; class A misdemeanor.

(a) A person is guilty of endangering the welfare of a vulnerable adult when the person being a guardian or any other person who has assumed responsibility for the care or supervision of the vulnerable adult the person:

(1) Intentionally, knowingly, or recklessly acts in a manner likely to be injurious to the physical, mental, or moral welfare of the vulnerable adult; or

(2) Intentionally, knowingly, or recklessly does or fails to do any act, including failing to report a missing vulnerable adult, with the result that the vulnerable adult becomes a neglected or abused adult.

(b) "Vulnerable adult" means a person 18 years of age or older who, by reason of isolation, sickness, debilitation, mental illness or physical, mental, or cognitive disability, is easily susceptible to abuse, neglect, mistreatment, maltreatment, intimidation, manipulation, coercion, or exploitation. Without limitation, the term "vulnerable adult" includes any adult for whom a guardian or the person or property had been appointed.

(c) Endangering the welfare of a vulnerable adult is a class A misdemeanor.

SYNOPSIS

This Act creates the criminal offense of endangering the welfare of a vulnerable adult. A person found guilty of endangering the welfare of a vulnerable adult is guilty of a class A misdemeanor.

This Act requires a greater than majority vote for passage because § 28 of Article IV of the Delaware Constitution requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly.

Author: Senator Huxtable